Manoj Rastogi vs State on 14 May, 2003

Equivalent citations: 2003IVAD(DELHI)37, 106(2003)DLT511, 2003(69)DRJ567

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Bench: R.C. Chopra

JUDGMENT

R.C. Chopra, J.

1. This petition for anticipatory bail under Section 438 of the Code of Criminal Procedure (hereinafter referred to as "the Code" only) has been moved by the petitioner in case FIR 48/03 registered at P.S. Jahangri Puri under Section 408/420 of the IPC.

2. I have heard learned counsel for the petitioner and learned counsel for the State. I have also heard learned counsel for the complainant.

3. Briefly stated the facts relevant for the disposal of this application are that the petitioner, who is the proprietor of M/s. K/K. Industries Moradabad, is doing the business of polishing stainless steel-utensils, cutlery, tableware, Kitchenware etc. The complainant, proprietor of M/s Bimla Industries, is running an export oriented unit for the export of cutlery etc. He was getting his cutlery polished from the petitioner. The complainant used to send his goods for polishing to the petitioner and after polishing the same the goods used to be returned back to the complainant. According to the FIR the complainant found that his Accountant Manoj Mittal, one of the accused, who was looking after the accounts and handling the receipt and dispatch of goods to the petitioner had colluded with the petitioner with a view to cheat the complainant and had been showing the return of goods from the petitioner falsely in the books of accounts of complainant. Bills No. 697, 706 and 707 in regard to the job work and return of goods after the work were fake and manipulated by Manoj Mittal and the present petitioner. In fact the goods were not received back in the unit of the complainant but documents were falsely prepared to show the return thereof. It was also stated that these goods had been sold by them in the open market and on inquiries the Transporter even had informed the complainant that fake GR's were being obtained from him by Manoj Mittal and the present petitioner.

4. After the registration of the FIR investigations were taken up and it was found that the goods purportedly received in the complainant's unit through above referred bills were never brought back from Moradabad and false and fabricated documents were prepared to show that the same had been received. The Auditors report dated 27.10.2002 confirmed this fact. The statement of Ajeet Kr. Mehta, Proprietor of M/s Mehta Transport Company also disclosed that Manoj Mittal and the

present petitioner were indulging in this fraud for quite some time and were obtaining false and fabricated goods receipts from him. He was issuing the same without Realizing that a conspiracy was going on. The statements of the Drivers Mohinder and Dal Chand and the log book show that the goods were not brought to the unit of the complainant. Manoj Mittal was arrested and in pursuance of his interrogations in police remand 25 bags of the misappropriated goods were recovered from the petitioner's premises.

5. Learned counsel for the petitioner pressing for anticipatory bail has vehemently argued that the documents placed on record clearly show that the goods vide bills No. 697, 706 and 707 were actually received back in the complainants unit and in case Manoj Mittal, the Accountant of the complainant was indulging in some mischief, the petitioner could not be blamed for that. He has referred to the bills regarding job work, GR receipts issued by M/s Mehta Transport Company and Form 31 in respect of the aforesaid bills which beat the signatures of Rakesh Kumar, an employee of the complainant and has argued that so far as petitioner is concerned he had sent back the goods to the complainant after doing the job work and as such the allegations against him are false and frivolous.

6. Learned counsel for the State on the other hand has referred to the statement of Rakesh Kumar under Section 161 Cr. P.C. who has stated that it was not at all his job to sign the bills regarding the receipt of the goods after the completion of the job work but he was putting his signatures on some bills on the asking of the Accountant Manoj Mittal without knowing that the goods had not been actually received and his signatures were being obtained only with a view to create evidence to show that the goods had been received. Learned counsel for the State has also referred to the statement of Ajeet Kr Mehta and other material on record and contends that at this stage it cannot be said that the evidence collected by the investigating agency is false or frivolous and the petitioner is totally innocent. He also points out that the recovery of the misappropriated goods on the disclosure of Manoj Mittal from the premises of the petitioner clearly suggests that Manoj Mittal and the petitioner had entered into a conspiracy to cheat or mis-appropriate the goods of the complainant. It is submitted that the goods worth crores of rupees have been misappropriated and as such it is a fit case in which the petitioner's application for anticipatory bail should be declined so that the investigating agency is in a position to take him into custody and interrogate him not only for the recovery of the goods but also for enquiring as to who else were involved in this offence.

7. After considering the submissions made by learned counsel for the parties and examining the material available with the investigating agency, this court is of the considered view that the allegations against the petitioner are quite serious. Goods belonging to the complainant worth crores of rupees have been misappropriated. The statements of the witnesses recorded under Section 161, Cr.P.C prima facie indicate a conspiracy between the petitioner and Manoj Mittal, the Accountant of the complainant. These statements cannot be brushed aside at this stage by saying that the same are false and cannot be acted upon. The recovery of some of the mis-appropriated goods on the disclosure of co-accused Manoj Mittal from the premises of the petitioner indicates that the petitioner is concerned with the offence.

8. The law is well settled that in cases where an accused is alleged to be involved in a serious offence and is required to be interrogated by the investigating agency, his custodial interrogation is more effective and result oriented. An accused protected by a pre-arrest bail order can never be effectively interrogated. His interrogation becomes a ritual, only.

9. The Apex Court in the case of CBI v. Anil Sharma, , Pokar Ram v. State of Rajasthan and Ors., , Directorate of Enforcement and Anr. v. P.V. Prabharkar Raon, 1997 SC (Crl.) page 978, State of Andhra Pradesh v. Bimal Krishna Kundu and Anr., , Dughishyam Benupani, Assistant Director, Enforcement Directorate (FERA) v. Arun Kumai; Bajoria, 1998 SCC (Crl.) 261 and Enforcement Officer, Ted, Bombay v. Bher Chand Tikaji Bora, 2000 (121) ELT (SC) 7, has clearly held that the grant of anticipatory bail in cases pertaining to serious offences has the effect of shaking the faith of people in the administration of justice. In the case of State v. Anil Sharma (supra) Hon'ble Mr. Justice K.T. Thomas speaking for the Bench observed that effective interrogation of a suspected person is a tremendous advantage in disintering many useful informations and materials which would have been concealed. It was also observed that the argument that the custodial interrogation is fraught with the danger of the person being subjected to third degree method need not be countenanced for such an argument can be advanced by all accused in all criminal cases.

10. Under the circumstances, this Court is of the considered opinion that in view of serious nature of the offence, gravity of the allegations and the material suggesting the involvement of the petitioner in the offence, there are no good grounds for the enlargement of the petitioner on anticipatory bail. In case the petitioner is insulated by a pre arrest bail order the investigations would suffer a serious set back. The custodial interrogation of the petitioner may lead to the recovery of case property and enable the investigating agency to unearth other ramifications of the offence including the identity of others involved in the commission of the offence.

11. The application for anticipatory bail therefore stands dismissed.

12. Interim protection is withdrawn.